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THE LAW RELATING TO CHILDREN

1. Definition of a child.
2. Custody and maintenance of children.
3. Adoption of children.
4. Proof of paternity or declaration of parentage.
5. Guardianship.

Law applicable:

1. 1995 Constitution of the Republic of Uganda.
2. The Children Act, Cap 59.
3. The Children (Amendment) Act, 2016.
4. Employment (Employment of Children) Regulations, 2012.
5. National Council for Children act, Cap 60.
6. The Children (Adoption of Children) Rules SI 59-1
7. The Children (Family and Children Court) Rules SI 59-2
8. African Charter on the Rights and Welfare of the Child (UN, 1989).

1. DEFINITION OF A CHILD

Under **Article 257 (c)** of the Constitution and **Section 2 of the Children Act Cap 59**, a child means a person below the age of eighteen years.

The Constitution in not so express terms also covers under **Article 22 (2)** an unborn fetus as a child. It gives a prohibition on abortion by giving such an unborn child a right to life.

The case of **McKay v Essex Area Health Board [1982] 2 ALLER 7712 ALLER 771**, considered with an unborn child has any rights including that to life. In this case, a mother and child claimed that a doctor not issuing abortion advice when a serious disability is diagnosed during pregnancy deserved recompense in the form of damages for “suffering entry into a life in which her injuries are highly debilitating.” The mother and child lost the case. The Court’s reasoning was that a fetus is not yet a human being to have a say on whether they should live or not.

1.1. Rights of children.

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The rights of children can be found in **Article 34** of the **Uganda Constitution**.

These rights are:

- Right to know and be cared for by their parents or those entitled by law to bring them up.
- Entitlement to basic education which shall be the responsibility of the state and the parents of the child.
- Right to medical treatment. (Also read **Article 14 of the African Charter on the Rights and Welfare of the Child** and **Section 5(f)** of the Children Act Cap 59 (as amended).
- Protection from social or economic exploitation and shall not be employed in or required to perform work that is likely to interfere with their education or harmful to their health or physical, mental, spiritual, moral or social development. (Also read Sections 6 and 7 of the Children (amendment) Act 2016 and the Employment (Employment of Children) Regulations, 2012.)

1.2. **The child's welfare; the welfare principle:**

The term welfare is not defined in the Children Act and so is it not in its recent amendment.

Although the welfare principle is the cornerstone of child law, it was difficult to find a judicial definition of what welfare is till around 1893. Lindley LJ in **Re McGrath (infants) [1893] 1 Ch 143** made the first attempt at finding a meaning for the term welfare. He said, “...*the welfare of a child is not to be measured by money alone nor by physical comfort only. The word welfare must be taken in its widest sense. The moral and religious welfare must be considered as well as its physical be disregarded.*” (Also look at **Lough v Ward [1945] 2 ALLER 338**

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Bromley gives the New Zealand case of **Walker v Walker and Harrison [1981] NZ Recent Law 257** as the best case that defines what welfare is.

Hardy Boys J in this case said,

“Welfare’ is an all-encompassing word. It includes material welfare, both in the sense of an adequacy of resources to provide a pleasant home and a comfortable standard of living and in sense of an adequacy of care to ensure that good health and due personal pride are maintained. However, while material considerations have their place, they are secondary matters. More important are the stability and security, the loving and understanding care and guidance, the warm and compassionate relationships that are essential for full development of the child’s own character, personality and talents.”

Ugandan case law has also kept to these set principles of common law while keeping within our statutory provisions.

(Read Nakaggwa v Kiggundu (1978) HCB 310; George Nyakairu v Nyakairu (1979) HCB 261 and (1978) HCB 310; George Nyakairu v Nyakairu (1979) HCB 261 and Wambwa v Wambwa v Okumu [1970] EA 578 Okumu [1970] EA 578.)

The work of court when applying the welfare principle is not to deal with what is ideal for the child but with what is best that can be done in the circumstance.

In **Clarke-Hunt v Newcombe (1983) 4 FLR 482**, the appellate court had this to say of the trial judge, “There was not really a right solution; there were two alternative wrong solutions. The problem for the judge was to appreciate the factors in each direction and to decide which of the two bad solutions was the least dangerous, having regard to the long term interests of the children.”

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Although the Children Act (as amended) does not define what welfare is, the 2016 amendment introduced a checklist of items that will guide a court or any person faced with making a legal decision for a child.

What the Act means by “paramount consideration” was explained by **Lord McDermott in J v. C [1970] AC 668J** to mean a consideration which “rules upon or determines the course to be followed”.

The checklist is in **Section 3** of the 2016 amendment to the Children Act. It should be noted that the check list is not exhaustive. It is only meant to provide a means by which similarity in exercising the wide discretion in determining what is best for the child.

Also worth noting is that the child’s view is not expressed as determinative of the exercise of the discretion of a judge or any person, though the older the child the more persuasive their views will be.

2. CUSTODY AND MAINTENANCE OF CHILDREN

2.1. Custody:

Custody concerns the legal rules governing the right of children regarding whom to live with. It means the sum total of the rights which a parent may exercise over their child. The rights subsist until a child attains the age of majority. In **Hewer v Bryant [1970] 1 QB 357**, the British Court used the following words in relation to custody,

“In its wider meaning, the word custody is used as if it were almost the equivalent of guardianship in the fullest sense whether the guardianship is by nature, by nurture, by testamentary disposition, or by order of a court...I use the words fullest sense because guardianship may be limited to give control over the person or only over the administration of the assets of an infant...Adopting the convenient phraseology of counsel, such a guardianship embraces a bundle of rights or, to be more exact, a bundle of powers which continues until a male infant attains (the age of majority) or a female infant marries. These include the power to control education, the choice of religion

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and the administration of the infant's property. They include entitlement to veto the issuance of a passport and to withhold consent to marriage. They include, also, both the physical control of the infant's personal property until the infant attains years of discretion ”

Article 31 (4) enjoins a duty upon parents to care for and bring up their children. This means that the parents of a child have the **first** right to custody of their own children. It is when parents live apart, are unmarried or divorced or one or both of them are dead that the issue of who should have custody of children.

According to **Section 73 (1)** of the Children Act (as amended), the court may, on application of a sole applicant or joint applicants, grant custody of a child on such conditions as may be determined by the court. The Court will take into consideration the aforementioned guiding welfare principle.

The Children Act generally has two types of custody. These are; Interim custody by Court and custody by agreement.

Interim custody is given to either a probation and social welfare officer, mother, father or guardian of a child on application to a court of competent jurisdiction pending the determination of the main suit for custody of such a child by Court.

According to **Section 73A**, this order is made where the court is satisfied that the child is suffering or likely to suffer harm if the order is not given or if it is in the best interests of the child.

Custody by agreement is provided for under **Section 73B** of the Act. Here the parents of the child enter into a written agreement to determine which of them shall have custody of the child.

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Low

Such an agreement is enforceable in a Court of law unless it is determined by the Court that it was made not in the best interests of the child, was made under duress or made fraudulently.

Please read:

1. RM [1967] 3 ALLER 1071.

1. Muhammed Hassan v Nana Binti Mzee [1944] 11 E.A.C.A 4

2. Samwiri v Rose Achen [1987] HCB 297.

3. George Nyakairu v Rose Nyakairu [1979] HCB 261.

4. Nakaggwa v Kiggundu (1978) HCB.

5. Wambwa v Okumu [1970] EA 578.

6. Re A (a minor) (residence order) [1998] 2 FCR 633.

Sometimes the Court may find difficulty in application of the welfare principle as illustrated below:

The natural wishes of the parents:

Sometimes there are conflicts between the natural parents whose conduct is unimpeachable and an outsider.

Custody is not necessarily granted to a natural parent. The usual rule of thumb is custody is distributed taking into account the best interests of the child (ren). But the natural parents as already noted have a strong claim to the child since as also already noted, the child normally has a right to be with them.

An example case is Samwiri v Rose Achen [1987] HCB

The conduct of the parties.

The conduct of the parties in relation to the child is of relevant importance in determining what the best interests of the child would be.

However, the problem comes where the dispute is between the parents to the child and a court has to decide how far such a dispute will affect the best

interests of the child and what effect it may have on the custody order.



In *George Nyakairu v Rose Nyakairu* [1979] HCB 261, the court considers this in coming to its decision.

The age and sex of the child (ren)

Statements often appear in reports that as a general rule, it is better that very young children should be in the care of the mother and older boys in the care of the father. These are not principles or rules of law. They are simply judicial statements of general experience whose application depends on the facts of each case. Such example of a case is that of **Wambwa v Okumu** [1970] EA 578

Material advantages or benefits.

Welfare of the child should not be equated with material advantage but should not be ignored either. The ability of an applicant to provide an adequate home for the child is a determining factor.

In *George Nyakairu* (supra) the, father of the child had superior financial capability as compared to the mother. The court while noting that this was irrelevant in a custody application, it could not be ignored for if it could be proved that the father could use his superior financial standing to cater for the welfare of the child better than the mother who was financially inferior, then the father would stand a better chance in being given custody of the child.

Though this could be the case, the overriding factor is the interests of the child and if the parent could use the material advantage to enhance the child's welfare, then it could be taken into consideration.

Also read; **Hofman v Hofman** [1970] EA 100.

Medical factors

The danger of psychological harm arising from a change in custody is now

widely recognized and forms part of the general knowledge and experience of judges. The evidence of a psychiatrist or educational psychiatrist can be



tendered where a dispute about custody arises. If the child is suffering from some physical or psychological malady or condition, then such evidence will be necessary and will weigh heavily in court.

2. Maintenance

According to **Article 34** of the Constitution, children have the right to know and be cared for by their parents or those entitled by law to bring them up. Section 5(1) of the Children Act imposes a duty upon a parent, guardian or any person having custody of a child to maintain the child by making sure they are educated, immunized etc.

When two parents separate, it is often determined that a child will primarily reside with one of the separated parents, the other exercising access or visitation rights from time to time. In those situations, the parent with the primary residence responsibilities will incur most of the child-related expenses: food, accommodation, clothing, groceries, utilities, transportation, school, lessons etc.

To reflect that inequity, the common law, and then by statute, has established that each parent has a legal obligation to support their child. For the parent who does not have the child living with her/him, this means equally or fairly contribute to their child's expenses and needs. This is done by requiring that parent to make monthly or other periodic (rarely a lump sum or annual payment) to the other parent as a contribution towards the expenses of raising a child.

2.1. Who may apply for maintenance?

According to Section 76 of the Children Act, the mother, father, guardian as against the biological parents and child may apply for

maintenance.

8 | Page

SIKIA
Low

This can be done during the subsistence of a marriage, during divorce proceedings, separation or nullity proceedings, during proceeding for declaration of parentage, after the proceedings for declaration of parentage and during pregnancy or before the child attains eighteen years of age.

During such proceedings it is incumbent on the party seeking to have a maintenance order a part of the orders given by the Court to formally state so in their pleadings as the Court cannot vary the orders in such proceedings at a later time to include maintenance orders.

See: Helen Monica Barrett v James Barrett [1961] 1 EA 503.

2.2. Enforcement and variation of maintenance orders.

Under Section 78 of the Children Act, on application at any time by the applicant for maintenance or by the person against whom the order is made, the court may after inquiring into the circumstances, make an order either increasing or decreasing the amount of money previously ordered to be paid under the order.

The order is enforceable against the estate of the “payor” upon their death according to Section 37 of the Succession Act. Also refer to Sections 78(3) and (4) of the Children Act.

Under Section 78(2), an order for maintenance against a parent shall cease to have effect on custody of the child being granted to that parent or other person in his or her place by the Court.

Under Section 79, the money can be paid to applicant or custodian. All the money payable under maintenance shall be due and payable to the applicant unless a custodian has been appointed in which case, the money shall be due and payable to the custodian. And under subsection (2), the Court may also order that the money shall be paid into Court and then paid to the applicant or custodian in a manner and subject to any condition as the Court may direct.

The Court under Section 80(1) of the Children Act can appoint a person

known as a custodian where the court is satisfied that the initial applicant is



not 昀梲t and proper to have custody of the child; or is dead or has become of unsound mind or is in prison. The custodian will assume custody of the child upon appointment.

The application may be made by a probation and social welfare 昀ヶcer or the person having custody of the child. This is provided for under Section 78(2) of the Act.

2.3. Cessation of the order.

Under Section 82 of the Children Act, a maintenance order ceases to have any force or validity upon the child attaining eighteen years.

3.0. ADOPTION OF CHILDREN ADOPTION OF CHILDREN

Adoption according to the Blacks Law Dictionary, 9th Edition is the creation of a parent – child relationship by judicial order between two parties who are unrelated.

It refers to the legal and formal acceptance of another's natural or biological child as if that child were your own, with the same rights and responsibilities attached thereto as if the child were your natural child, both in terms of child support and standing in intestates.

In **Ayat Joy v Jenevieve Chenekan Obonyo** and another HC Adoption Cause No. 52 of 2002, it was stated by the Court that adoption creates a lifelong relationship of parenthood between a child and adopter.

3.1. Preliminary steps to adoption.

An application for an adoption order may be made to the Chief Magistrates' Court within the jurisdiction of the applicant's residence where both the applicant and child are Ugandans according to Section 44(1) (a) of the Children Act. The application may be made in the High Court Family

Division according to Section 44(1) (b) of the Act, where the child or applicant are



foreigners. A child need not be a Ugandan to be adopted according to Section 41(2) of the Act.

3.1.1. Prerequisites for adoption. Age.

The Applicant or at least one of the joint applicants must have attained the age of 25 years and should be at least 21 years older than the child. S.45 (1) (a) of the Children Act.

Consent (spousal);

Where the application is by one spouse, the other spouse must have consented to the application. **Section 45(1) (b)** Children Act.

Sex of the applicant;

The adoption order cannot be made in favour of a sole male applicant in respect of a female child or in favour of a sole female applicant in respect of a male child, unless the Court is satisfied that there are special circumstances that justify as an exceptional measure, the making of the order. **Section 45(3)** Children Act. Also read *Re Edith Nassazi Adoption Cause No. 4 of 1997* on exceptional circumstances. (Uncle given an order against his niece)

Foster Care;

The applicant must have fostered the child for a period not less than 12 months under the supervision of a probation and social welfare officer.

In *Re Derrick Mugoya, Okola Wily, Edward Kabuyo (children) Adoption Cause No. 69 of 2007*, the learned

judge noted that **Section 45** is only discretionary and not mandatory and the period can be waived if it is in the best interests of the child.



However, case law has gone ahead to show that the fostering can only be done away where special circumstances exist that necessitate the best interests being taken into consideration.

Inter-Country Adoption; Forum, High Court

The prerequisites are slightly more stringent than in circumstances where the parties are Ugandan nationals. Section 46.

Before a non-citizen can make an application, the following prerequisites must be in place;

1. Must have stayed in Uganda for at least one year.

Case law has defined residence in different ways. For example; In *Re Yvonne Kamahi Adoption Cause No. 1 of 1993*, the Court stated that to constitute residence there must be a presence in Uganda for a considerable period of time.

In *Re M (an infant) SCCA No. 22 of 1994*, the Supreme Court, while referring to the English case of *Fox v Shirk (1970) 2 ALLER 7*, the Court observed that one can have two residences and reside in both. That a temporary presence at an address does not make one resident there and neither does temporary absence deprive a person of his or her residence. Odoki JSC as he was then went ahead and stated that the Act did not specify which kind of residence was required for the purpose of exception and what was required was substantial presence in connection with Uganda.

2. Must have fostered the child for one year under the supervision of a probation and social welfare officer.
3. Must not have a criminal record.
4. Must have a recommendation concerning his or her suitability to adopt a child from his or her country's probation and social welfare officer.

केcer or relevant competent authority.



5. Must satisfy Court that his or her country of origin will respect and recognize the adoption order.
6. The ordinary prerequisites in Section 46(3) of the Children Act also apply here.

Consent of the Child's parents;

Under Section 47(1) and (2) of the Children Act, the consent of the child's parents is necessary if the parents are known, but it may be dispensed with by the Court at its discretion in exceptional circumstances if the parents are incapable of giving it or are dead; but the consent may be revoked at any time before the pronouncement of the adoption order.

In **Re Micheal Lumu Adoption cause no. 8 of 2000**, it was stated by the Court that the purpose of the consent under this section is to emphasize the right of the parent over the child. And this right should only be discarded in the interest and welfare of the child.

In **Re Peter Sebuliba alias Namansa James (Misc. Cause No. 37 of 2009) ((Misc. Cause No. 37 of 2009)) [2010] UGHC 124**, the Court stated that, the consent to adoption is a very important document because it is in it that the parents or guardians of the child to be adopted vest their parental rights in the adoptive parents.

Read:

1. Re Elena Nsubuga Kaggwa adoption Cause no.41 of 1989.
- 2 Re Peter Sebuliba alias Namansa James (Misc. Cause No. 37 of 2009) ((Misc. Cause No. 37 of 2009)) [2010] UGHC 124. .
3. Re Kakembo (infant) (FAMILY CAUSE NNO 169 OF 2014) (2014) UGHCFD
- 10.



Under Section 47(5) of the Act, where in the view of the Court, the Child is able to understand the adoption proceedings, then his or her views shall be taken into consideration.

Section 47(6) of the Act on the other hand makes it mandatory to obtain the consent of the child where the Child is at least fourteen years of age unless it is not possible for the child to express his or her wishes.

Also read Article 12 of the United Nations Convention on the Rights of the Child 1989 on the requirement of member states to ensure that a child who is capable of forming his or her own views on such proceedings is given this chance.

3.1.2 Rescission of an adoption order.

Under Section 46A of the Children Act, an adoption order may be rescinded by a Court of competent jurisdiction on application by;

- a) The adopted child;
- b) A parent of the adopted child or other person who was a guardian in respect of the Child immediately before the adoption;
- c) The adoptive parent of the child;
- d) Any person who consented to the adoption;
- e) The Minister in case of inter-country adoption; or
- f) Any other person with a justifiable reason.

The order for adoption may be rescinded only if the rescission is in the best interests of the child; or the order was obtained through fraud or misrepresentation.

Upon rescission of the order, the child will be for all intents and purposes as one that has never been adopted before and the responsibilities that had been terminated by the order previously will be restored.

Upon rescission, the Court may make an appropriate placement order in respect of the child concerned or order that the child be kept in temporary

safe custody until an appropriate order is made by the Court or the Court



may make an ancillary order where necessary for the restoration of the Child.

3.1.3. Pleadings in adoption proceedings;

An application for adoption is by way of Petition. (Read Rule 3 Rule 3 of the Children (adoption of Child) Rules SI_59_1.

The statements in the petition must be verified by an affidavit to which be annexed certificates and other documents proper for proving all allegations in the petition (Rule 7 Rule 7).

The petition is presented ex parte by the petitioner or advocate to a Judge or Magistrate sitting in chambers and the hearing must be attended by the probation and social welfare officer under whose supervision the child was fostered.

4.0. PROOF OF PATERNITY OR DECLARATION OF PARENTAGE

4.1. Who is a parent?

The concept of parenthood is far from straightforward. Many a time it is assumed that the parents a child are those who genetically produce the child. The woman whose egg and the man whose sperm together ultimately produce the child are its parents. In the past, although there may have been practical problems in proving who was the biological father, that definition of parenthood was generally agreed. In recent times this definition has become problematic.

Developments have caused a re-examination of the concept of parenthood.

The first is the advent of new reproductive technologies. Now the woman

who carries the child need not be genetically related to the child; a man may donate sperm to a hospital without ever intending to play a parental role.



The law recognizes the child's biological father as his legal father, if the parties are married, any child born of the wife is presumed to be the child of the couple. (**Read Banbury Peerage Case (1811) 1 Sim & St 153 HL**) This presumption is sometimes known as **pater est quem nuptiae demonstrant** (or **pater est** for short). It does not apply to unmarried cohabitants. If the birth takes place during the marriage but conception took place before the marriage the *pater est* presumption still applies. The presumption also applies if it is clear that the conception took place during a marriage, even if death or divorce has ended that marriage by the time the birth occurs.

The court will refer to the normal gestation period, although the House of Lords in **Preston-Jones v Preston-Jones [1951] AC 391 HL** could not agree on the definition of a gestational period.

At common law the presumption could only be reverted where evidence of the matter proved beyond reasonable doubt but now, the matter is determined on the balance of probabilities. In the case of **S.Y.MC, WV O'Keefe v Solicitor (1972) App. Cases 24 at pg.41, Lord REID said;**

"Blood tests have been used extensively for many years in many countries and it's now generally recognised that if a test is properly carried out by a competent Serologist, its results are fully reliable."

An order for parentage can be applied for at any time before the child reaches the age of eighteen years.

Under Section 67 of the Children Act, the mother, the father, the guardian and the child him or herself by next friend can apply for an order of parentage.

The procedure for application for an order of parentage is by a complaint on oath to a Family and Children Court having jurisdiction in the place where the

applicant resides for summons to be served on the man alleged to be father



of the child or the woman alleged to be mother of the child. Read **Section 67(d)** of the Children Act.

The application, according to **Section 68** of the Children Act, can be made at any time before the child attains eighteen years of age; or within three years after the death of the alleged father or mother; or with leave of the Family and Children Court where the application is made after the lapse of three years.

In declaration of parentage, Court will consider a number of factors. The mere fact that the child resembles or does not resemble the presumed parent is not conclusive evidence of parenthood or otherwise.

In **Petelonia Mpirirwe v Oliver Ninsabimana [1994] KALR 88**, it was stated by the Court that evidence of similarity in physical features between a child and the alleged parent is admissible to prove paternity even if the evidence is not conclusive.

4.2. Evidence of parentage;

a) Births register:

According to **Section 71 (1)** of the Children Act, where the name of the father or the mother of a child is entered in the register of births in relation to a child, a certified copy of that entry is prima facie evidence that the person named as the father or mother is the father or mother of the child named therein.

b) Signed instrument:

According to **Section 71(2)** of the Children Act, an instrument signed by the mother of the child and by any person acknowledging that he or she is the father or mother of the child if the instrument is executed as a deed or if the instrument is signed jointly or severally by each of those persons in

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17 | Page

SIKIA
Low

presence of a witness is prima facie evidence that the person named as the father is the father of the child or the mother.

c) Court inferences;

The court may also infer paternity simply from the facts of the case. For example, if it were shown that the mother and the man spent the night together at the time the conception is said to have taken place, this would be evidence of the man's paternity.

In **Wynn Jones Mbwambo v Wandoa Petro Aaron [1966] 1 EA 241**, the respondent had written a letter to applicant expressing in endearing terms saying he still remembered "that night". The Court held that the letter, undoubtedly "tended" to prove that he was the father of the child. But also went further to hold that the person depending on such an allegation should be corroborated and the corroborative evidence need do no more than show the probability that the mother's evidence implicating the man is true; it must point to the man as the probable father, but it is not correct to say that it must be incapable of any other interpretation. This is also brought out under Section 69(3) of the Act.

d) Order of Court:

Under Section 71(3) of the Children Act, an order of a court for maintenance made against a person under any written law is prima facie evidence of parentage in subsequent proceedings, whether or not between the same parties.

A declaration of parentage by the Court under this part shall for all purposes, be conclusive proof of parentage according to subsection 4. An order made by a competent court outside Uganda in a ~~affiliation~~ ^{affiliation} or similar proceedings declaring or having the effect of declaring a person to be the father or mother of a child is prima facie evidence that the person mentioned

in that order is the father or mother of the child.



e) References in wills:

According to Section 71(6), a reference, express or implied in a will written or oral, of any person to a child as his or her child or daughter is prima facie evidence that, that person is the father or mother of the child.

f) Blood samples may also be used as already discussed above. This is provided for under Section 69(4) of the Act.

The burden of proof in parentage proceedings is on the person who alleges
Also read:

1. Simpson V Collinson (1964) 1 All E.R. 261
2. CT v MW [1969] ECT v MW [1969] E.A. 375A. 375.
3. B. B. v. AG [1968] 1 KLR 776.

5.0. GUARDIANSHIP

A guardian according to Section 1(k) of the Act is a person having parental responsibility of the child.

Guardianship in according to the Children Act is of three types; viz; Legal guardianship, customary guardianship and guardian appointed by agreement.

5.1. Legal guardianship:

This a fairly new type brought by the latest amendment to the Children Act. It applies to children in Uganda.

According to the Act, the order can only be awarded to Ugandan citizens. A person who is not a citizen of Uganda is not eligible to apply for legal guardianship.

An application for legal guardianship may be made by any person above the age of eighteen years to the High Court.

The petition shall be in Form 1 set out in the Third Schedule and it shall be

accompanied by a report of the probation and social welfare officer.



5.2. Customary guardianship:

Customary guardianship means parental responsibility of a Ugandan child by a Ugandan citizen resident in Uganda in accordance with the customs, culture or tradition of the respective people.

Family members may appoint a guardian of a child in accordance with their customs, culture or tradition where both parents of the child are deceased or cannot be found; the surviving parent is incapacitated; or where the child has no guardian or any other person having parental responsibility for him or her.

A customary guardian once appointed, shall act as trustee in respect of the property of that child.

5.3. Appointment of a guardian by agreement:

The parent of the child may by agreement or deed appoint any person to be a guardian of their child.

For such an agreement or deed to have effect, it must be dated and signed by the parent in the presence of two witnesses, one of whom must be a probation and social welfare officer, and the other must be a local councilor at LC 1 level.

The court also has the power to appoint two or more persons to act as guardians of the child. These are known as joint guardians. They must be spouses for them to qualify for such an order otherwise, a guardianship order shall not be made to authorize more than one person as guardian of a child.

5.4. Conditions for guardianship:

The court prior to making an order for guardianship shall satisfy itself that:

- a) There is no known relative or next of kin of the child;
- b) The relative or next of kin are unwilling or unable to take parental

responsibility of the child;

c) All alternative care options available to the child have been exhausted;



- d) The child is suffering or likely to suffer significant harm under present custody;
- e) Consideration has been given to the wishes of the child, having regard to the age and understanding of the child, where in view of the court, the child is able to understand the guardianship proceedings;
- f) Where the child is twelve years or above, his or her consent to the guardianship has been obtained, unless it is impossible for the child to express his or her consent; and
- g) That the applicant has continuously lived in Uganda for at least three months; does not have a criminal record; and has a recommendation concerning his or her ability as a guardian from a probation and social welfare officer or other competent authority in Uganda or in the applicant's country of residence; and
- h) That the applicant has not made, given or agreed to make any payment or other reward in consideration of the guardianship.

5.5. Effect and duration of a guardianship order:

A guardianship order vests parental responsibility of the child in the guardian.

Guardianship does not completely extinguish the rights and obligations of the natural parents.

A guardianship order shall remain in force until the child in relation to whom it is issued attains the age of eighteen years.

The order shall also cease to apply where the guardian dies or is suffering from infirmity of the body or mind.

The order must be registered within fourteen days after its grant. Registration is with the Uganda Registration Services Bureau and Ministry responsible for children affairs; a copy of the order should also be submitted to the National Children Authority.

Read:

1. F v F (1902) 1 Ch 688F v F (1902) 1 Ch 688



2. Re Deborah Joyce Alitubeera and Re Richard Masaba Civil Appeal no. Civil Appeal no. 81 of 2011.81 of 2011.
3. Re Sarah Mirembe [1992- -93] HCB 187.93] HCB 187.
4. Re Jane Nakintu HCMC no. 166 of 1997.
5. Re Prossy Nalugwa HCMA no. 500 of 1997.HCMA no. 500 of 1997.
6. Re Ayla Mayanja HCMC no. 20 of 2003.

THE LAW OF SUCCESSION:

1. Technical terms.
2. Domicile.
3. Types of succession (1)
4. Wills.
5. Administration of estates.

The law of succession deals with the devolution and transmission of the estate of a deceased person.

It is the process by which one becomes entitled to the property of the deceased by operation of law or a will.

The law applicable to succession in Uganda is The Constitution of the Republic of Uganda, 1995; Succession Act Cap 162; The Administrator General's Act, Cap 157; The Administration of Estates (small estates) (special provisions) Act Cap 156; Administration of Estates of Persons of Unsound mind Act Cap 155; The Estates of Missing Persons (Management) Act 159.

1. TECHNICAL TERMS: TECHNICAL TERMS:

- Testator – a male person making a will.
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- Testatrix – a female person making a will.
- Testament– a will.
- Intestacy – a situation of dying without having made a will or having made a will which is subsequently rendered void or invalid.
- Administration – refers to; collection and presentation of assets, management and distribution.
- Administrator – is the person appointed by the Court in intestacy or in a will to manage the estate of a deceased person. The administrator is said to represent the deceased.

The assets of the deceased vest in the administrator. He or she acquires legal title to the property and can do anything the deceased would have done.

- Executor– an “administrator” appointed under the terms of a will.
- Beneficiary – a person who is to benefit by receiving a gift under the will or testament.
- Heir– a person who inherits in intestacy.
- Estate– means the total property both real and personal owned by someone and therefore, the property available for distribution upon death.
- Bequest – gift of property in a will.
- Probate – means grant by a court of competent jurisdiction authorizing the executor named in the testator’s last will to administer the testator’s estate under S.2(s) of Succession Act.
- Letters for administration – means the grant by a court of competent jurisdiction authorizing the applicant named in the application to administer the intestate’s estate.

2. Domicile:

Domicile is literally means dwelling or residence of someone. It refers to habitation in a place with the intention of remaining there permanently unless something occurs to alter that intention. It can be domicile by birth,

marriage or choice.

23 | Page

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Under Section 4 (1) of the Succession Act (S.A) succession to the immovable property in Uganda of a person deceased is regulated by the law of Uganda, wherever that person may have had his or her domicile at the time of his or her death.

Under Section 4 (2) of the S.A, succession to the movable property of a person deceased is regulated by the law of the country in which that person had his or her domicile at the time of his or her death. (Read Florence Sali Florence Sali Nurdin v Charmas Charania and others C.A no. 56 of 2008.) Section 4 (3) of the S.A provides a case of intestate succession where the deceased person is deemed to have had his domicile in Uganda if;

- (a) For a period of not less than two years, preceding his or her death that person was ordinary resident in Uganda.
- (b) He or she was survived by a spouse or child who was, at the time of his or her death, ordinarily resident in Uganda.

The issue of domicile only arises in case of movable property but can apply wholly in cases of intestacy.

3. Types of succession

There are basically three types of succession namely;

- Intestate succession.
- Testate succession.
- Partly testate and partly intestate succession.

3.1. Testate succession:

This is where a person dies leaving a will or valid testamentary disposition. The making of wills is governed by the provisions of S.36 of the Succession Act which states that every person of sound mind and who is not a minor may by will dispose of his property by will. (Read

Administrator General v Bukirwa and another C.S no. 2018 of 1992.)

24 | Page



A will may be defined as a written legal document that states what property you own and how you would like it to be divided after your death. It is also a declaration in a prescribed form of the intention of the person making it of the matters which he or she wishes to take effect on or after his death.

The classical case that defines a will is the case of **Lemage v Goodban (1865) 1 P & D 571 P & D 57** in which Sir JP Wilde defined it as '*the aggregate of a man's testamentary intentions, so far as they are manifested in writing, duly executed according to statute.*'

A will also state who should be in charge of dividing the property. In general terms, every instrument purporting to be testamentary, or to affect a previous testamentary instrument, made by a person over the age of eighteen and of sound mind and executed in accordance with the formal statutory requirements is regarded as a will if it purports to dispose of property, whether or not the deceased in fact left any property, or contains the appointment of an executor even if the executor renounces it.

A document without dispositive effect will normally not be effected by a Court of law. (Read In the Estate of Thomas, Public Trustee v Davies (Caple intervening) intervening) [1939] 2 All ER 567

3.1.1 What is meant by a Will being ambulatory.

The primary characteristic of a Will is that it is designed to take effect after the testator's death and is revocable during the testator or testatrix's life. This means that a will can't confer benefits whilst the testator is alive.

The ambulatory nature of wills has several significant implications. In particular:

- During the testator's lifetime, the contents of his Will are treated as mere

declarations of intention. Therefore he or she is at liberty to dispose of his property inter vivos (an inter vivos gift occurs when the donor intends the



transfer of interest to be immediate and irrevocable”) notwithstanding that it has already been devised by a will.

- For his part, a beneficiary to whom property has been left in the will cannot ordinarily restrain the testator from disposing of such property.

His expected interest does not take effect until the testator’s death and is liable to lapse if he predeceases the testator.

- Property belonging to the testator at his death is capable of devolving under his will even though he had not yet acquired it at the time the will was executed. For instance, if T makes a will devising ‘all my real property to B’ and T later buys some freehold land, which he retains till his death, this land will ordinarily form part of B’s inheritance under T’s will.

A leading decision on this is **Wonnacott v Loewen (1990) 37 E.T.R.**

B.C.C.A. this is a case from British Columbia. In this case, the defendant moved in with the deceased in March 1998 and the two planned to marry when the defendant’s divorce was granted. The deceased wished to give the defendant some financial security, regardless of the outcome of the litigation with her husband, so they consulted a solicitor. Certain documents were prepared and executed, including a transfer of estate in fee simple of the deceased’s residence to the defendant, to be used in the event of the deceased’s death. The terms governing the use of those documents were contained in an “escrow agreement” which gave the defendant an immediate right to live in the residence. It also provided that the deceased could take the transfer back in specified circumstances, in which case he was required to pay the defendant \$60,000. The defendant’s divorce was delayed and she was not to marry before the deceased died in 1988. She obtained the transfer and had it registered, thereby obtaining title to the residence. The deceased’s executor brought an action to set aside the conveyance on the

ground that the agreements were testamentary and invalid because of failure to comply with the Wills Act. The action was dismissed and the executor appealed.



The Court dismissed the appeal and held that whatever the form of a duly executed instrument the person making it intends it that it not take effect until after his death and it is dependent on death for its “vigor and effect”, it is testamentary. However, if the document creates a gift in praesenti, albeit to be performed after the donor’s death, it is not dependent on his death for its “vigor and effect”. The documents here examined in isolation, appeared to be testamentary, it was clear that they had life and vigor from the beginning. The documents conferred an interest on the defendant in the property and they were not testamentary.

Also read: *Malliga v Obukunyang* (HCT-0404-CVCV-CSCS-0013-2013) [2015] UGHCFD 39.

3.1.2. . Codicil:

As already noted, a Will can be altered by the maker during their lifetime. They can do so by an instrument called a codicil. Section 2(c) of the Succession Act defines a codicil to mean an instrument explaining, altering or adding to a will and which is considered as being part of the will. Codicils have been a part of estate law for hundreds of years. In Book 2, page 450 of his *Commentaries on the laws of England*, William Blackstone described a codicil as:

“... a supplement to will, or an addition made by the testator, and annexed to and to be taken as part of a testament.”

A codicil is of similar nature to a will as regards both its purposes and the formalities relating to it, but in general it is supplemental to and considered as annexed to a will previously made, being executed for the purpose of adding to, varying or revoking the provisions of that will. A codicil is nevertheless capable of independent existence, so that the revocation of a will, or a part of a will, does not necessarily effect the revocation of a codicil to it.

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Whatever the form it takes, any document can be proved as a will or codicil if;

(a) The person executing it intended it to take effect only at its death.

A person's testamentary intentions refer to their wishes and desires concerning the handling of his affairs in the period after his death.

(b) It was duly executed normally in accordance with Section 50 of the Succession Act, failure to do so renders the codicil void. (**Read Babumba and 13 Ors Vs SSali Babumba (CIVIL SUIT NO.78 OF 2012) and in the Estate of James Ngengi Muigai (deceased), Nairobi High Estate of Court Succession Cause No. 523/1996.**) According to this later case, a Will should be in writing, signed by the testator attested to by two or more competent witnesses who must see the testator write, sign or affix his mark on the document. This is what is referred to as due execution of a Will is.

A codicil effectuates a change in an existing Will without requiring that the Will be re-executed.

The maker of the codicil identifies the Will that is to be changed by the date of its execution. The codicil should state that the Will is altered except for the changes contained therein. The same formalities that are necessary for the valid execution of a will must be observed when a codicil is executed.

Failure to do so renders the codicil void. In **Serwan Kulubya v Nampiima Serwan CACA no. 51 of 1990A, Manyindo JA** as he was then held that a codicil not attested to by two witnesses is invalid and that a codicil is part of a will and its attestation is in the same way.

In deciding whether a document can be proved as a Will or codicil, the Court has to ascertain the intention of the person who executed it both from the

language of the document and extrinsic evidence. If the document appears to be testamentary on the face of it, a reputable presumption arises that the deceased intended it to take effect only at his death.

Also read;

1. Cock v Cooke (1866) LRIP & D 241



2. Milnes v Feden (1890) 15 P.D 105.
3. Re Meynell (1949) WN273.
4. 4. Goodman v Goodman (1920) P 261.
5. 5. Robertson v Smith and Lawrence (1870) 2 ALLER 43.
6. 6. Re Stable (1902) P 7. Re Stable (1902) P 7.

3.1.3. The requirement of writing a will and the contents of a wills of writing a will and the contents of a wills.

With the exception of privileged wills for which the Succession Act under Section 53 uses the word “may”, wills must generally be in writing in order to be enforceable.

Two points are worth noting in this requirement of writing:

- (i) The writing may be embodied in more than one document.

It is a usual scenario that the sum total of a testator's intentions are always drawn out of a single document but it is not uncommon for a testator to employ two or more documents. This as already explained could be in form of a codicil in which the testator may 酌碗nd it necessary to alter the contents of the original will.

However, it is worth noting that the law strictly considers that a testator should only have one Will. As was pointed out in Douglas-Menzies v Umphelby [1908] AC 224, where a person's testamentary wishes are set out in two or more documents, 'it is the aggregate or the net result that constitutes his will'.

In some instances, where two or more wills are found, and it does not appear clearly which was the former or latter, both are void. But if two codicils are found, and it cannot be known which was 酌碗rst or last, and one and the same thing is given to one person in one codicil, and to another person in another codicil, the codicils are not void, but the persons therein named ought to divide the thing between them. But if dates appear to the wills and codicils,

the latter will is always to prevail, and revoke the former; as also the latter



codicil, as far only as it is contradictory to the former; but as far as the codicils are not contradictory, they are allowed to be both in force.

(ii) The law does not prescribe the contents of the will. What is of concern in the law of succession, is for the will to dictate the manner in which the testator's property is to devolve on his death.

The testator (ix) may in addition if he or she so wishes use their will as a medium for;

- giving expression to his views on a variety of matters particularly the conduct of persons who would ordinarily be expected to benefit from his will;
- appointing executors and providing for their functions;
- appointing guardians for the testator's infant children;
- arranging for the payment of debts and the discharge of other obligations due from the testator;
- nominating beneficiaries under any testamentary power of appointment exercisable by the testator; and
- making provision for the testator's funeral and other matters relating to the disposal of his body.

Whatever directions the maker chooses to issue his or her will, the law does not impose a particular form to follow when making a will. As Buckley LJ put it in *Re Berger* [1989] 1 All ER 591, 'English law does not require a document which is intended to have testamentary effect to assume any particular form or to be couched in language technically appropriate to its testamentary character'.

A will may therefore consist of a simple home-made document framed in familiar everyday terms. Thus, for example, a will which simply read 'All for mother' was recognised as valid in *Thorn v Dickens* (1906) WN 54WN 54.

However, sometimes the services of professionals like lawyers are sought for

which they'll be held liable for any negligence on their part.

3.1.4. . Formalities for a valid will.



Section 50 of the Succession Act provides for the statutory formalities governing the due execution of a will.

(a) The requirement of writing

As already noted, with the exception of privileged wills, the law provides for every will to be in writing.

Even though S.50 stipulates that a will may be in writing, the law does not insist that the writing must be embodied in a single document as already discussed above. Documents may be incorporated by reference as provided for under S.51 of the Act.

The section makes mention of writing but does not limit the writing to be done personally by the testator (ix).

The will may be written wholly or in part by another person, and signed by the testator.

A will may be written on any material. Read examples of In the Estate of In the Estate of Murray Murray (1963) CLY 3621, where a will was written on a piece of cardboard and Hodson v Barnes Hodson v Barnes (1926) 43 TLR 71 where a will was written on an egg shell.

It is, however, customary for the writing to be set out on paper. The statutory format recommended is provided for in the Fourth Schedule of the Succession Act.

Wills are not required to be framed in any particular type of language as emphasized by Buckley LJ in Re Berger [1989] (supra)

(b) The testator (ix)'s signature

A further requirement imposed by **S.50** of the Act is that the will should be signed by its maker and where they cannot do so, it shall be signed by some other person in his or her presence and by his or her instruction.

This however means that the person may either sign in the testator's name

as was the case in **Smith v Harris** ((1845) 1 Rob 262, or in their own



name as happened in *In the Goods of Clark* **In the Goods of Clark (1839), 2 Curt. 329.**

The signature or mark of the testator or the signature of the person signing for him or her shall be so placed that it shall appear that it was intended thereby to give effect to the writing as a will.

This means that the signature can theoretically be placed anywhere on the document so long as it is apparent from the position that it is intended to give effect to the will. As an alternative to directing another person to sign on his behalf, the testator may sign the will himself, but in so doing rely on another person to guide his hand along the paper, especially where he is blind or seriously ill.

Although the common practice is for the testator to write his name on or affix his usual signature to the will, the courts have demonstrated considerable flexibility in determining what suffices as the testator's signature.

Where a will runs into several pages, it is not required to sign each page. A signature on one of the pages will be valid provided all the pages are sufficiently connected or attached at the time of execution. In *Re Little* *Re Little* (1960), for instance, T's will was contained on five pages and he signed the fifth page which was covering the other four. The court held that at the time of execution all the pages were sufficiently connected to validate the entire will. Also, in *In the Goods of Mann* *In the Goods of Mann* (1942) P. 146P., the sheet of paper containing the testatrix's will was not signed by her but was put in an envelope on which she wrote 'The last will and testament of JCM'. It was held that there, was a sufficiently close relationship between the envelope and the will to justify treating the envelope

as a page of the will and holding that by putting her name on the envelope the testatrix had effectively signed the will.



(c) The requirement that the testator must sign in the presence of witnesses
In order for a will to be duly executed T's signature must be witnessed in the manner stipulated in S.50 (c), which requires the Testator either:

(i) to sign the will in the presence of two witnesses both being present at the same time; or

(ii) to acknowledge his signature in the presence of such witnesses.

Read Administrator General v Bukirwa and another C.S no. 2018 of 1992 and another C.S no. 2018 of 1992.

The presence of these witnesses provides a useful safeguard against forgery and the exertion of undue influence.

In this context it is not enough for the witnesses to be in the same vicinity as the testator when he signs the will. The witnesses must actually have the opportunity of observing the testator in the act of signing. As Barnes LJ explained in **Brown v Skirrow (1902) P 3**: 'You cannot be a witness to an act that you are unconscious of; otherwise the thing might be done in ballroom 100 feet long and with a number of people in the intervening space. In my view, at the end of the transaction the witness should be able to say in truth "I know that [T] has signed this document".' In this case, a testatrix took her will to a grocer's to be executed. She asked two shop assistants to act as witnesses. As she was signing the document, one of the assistants was busy serving a customer. The will was held invalid.

In Bukirwa (supra) the Court held that in all administration causes where a will has been executed in suspicious circumstances, the best evidence which the court will accept concerning its due execution will be from one of the witnesses who attested to the will except in cases where they cannot be found or they are dead. But even where the witnesses cannot be traced, the court will look for some evidence from other people who were present and

witnessed the execution.



Due to the legal requirement that the witnesses are expected to 'see and be conscious of the act done and be able to prove it in evidence' (per Lushington LJ in **Hudson v Parker (1844) 1 Rob Ecc 14**, it follows that:

- a blind person cannot ordinarily be a witness, since he has no visual perception of the Testator's act of signing or acknowledging the will.

Thus, in *Re Gibson* [1949] 2 ALL ER 90, for instance, a codicil failed because one witness was blind. However, it is arguable that where the will or T's signature is written in braille, it can be acknowledged to a blind witness who is able to read such writing;

- a witness must in the words of Lushington LJ be present 'mentally as well as bodily'. For example, he must not be asleep or intoxicated or of unsound mind when the will is being executed.

The provision does not however require that more than one witness be present at the same time.

(d) The requirement that the witnesses must also sign the will

It is not express under s.50 that a witness must sign. But the process of attestation mentioned in this provision includes signing. They must do so after the Testator has signed.

It is therefore possible for a will to be invalidated by the fact that it was signed by a witness before the testator had signed in the presence of both witnesses or acknowledged his signature. (**Read Wyatt v Berry [1893] P5W** and **John Ntanda Masanyalaze v Rita Nanono and 4 Ors CA no. 86 of 2008**)

The testator must also be aware that the Witnesses are signing the will. So if for some reason, the Testator is so incapacitated for them to be conscious of this fact, the signature is invalid. Periodical lapses in consciousness of course being the exception. (**Read Right v Price (1779) Doug 241; 99 ER 157.**) Awareness in these circumstances means that the testator must see the witnesses in the process of signing the will.

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The witnesses need not sign the will in the presence of each other for the will to be valid.

3.1.5. Incorporation of documents.

Section 51 of the Act provides for a situation where a testator in a will or codicil duly attested, refers to any other document then actually written, as expressing any part of his or her intentions.

Such a document will be regarded as forming a part of the will or codicil in which it is referred to.

For the doctrine of incorporation by reference to apply, the following three conditions must be fulfilled:

- (i) The document must be in existence at the time the will is executed.**

In **Singleton v Tomlinson (1878) 3 App. Cas 404**, the testator by will directed his executors to sell four landed estates referred to in his will. Details of the same were set out in a schedule signed by the Testator, which bore the same date as the will and was annexed to it. The witnesses were uncertain whether they had seen the schedule at the time the will was executed and the court held that there could be no incorporation by reference since it had not been established that it was in existence when the will was executed.

- (ii) The document must be referred to in the will as being in existence.**

Unless the will describes the relevant document in terms which signify that it is in existence at the time the will is executed, it cannot be incorporated into the will.

- (iii) The document must be clearly identified in the will.**

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There cannot be incorporation by reference unless the terms used in the will to describe the document are clear enough to enable it to be identified.

3.2. Types of wills

There are three major types of wills,

- Privileged wills,
- Ordinary wills, and
- Mutual wills.

3.2.a. Privileged wills.

They are provided for under Sections 52 and 53 of the Succession Act. These can be made by a certain category of people under those provisions. The persons should however be of or above 18 years of age.

A privileged will may be written or oral. An oral will may be made by a testator declaring his or her intentions before two witnesses present at the same time. It is nullified after the expiration of one month after the testator has ceased to be entitled to make a privileged will under S.53 (2) of the Succession act.

Privileged wills may be written wholly/ partially by the testator or reduced into writing according to the testator's instructions by another person. The testator's instructions must have been given in the presence of two witnesses.

Categories of privileged testators include,

(a) Soldiers in actual warfare

A member of the armed forces being employed in an expedition or engaged in actual warfare, may make a privileged will.

What is actual warfare?

In **Re Wingham (1949) P 187 at 196**, Lord Denning stated that the

requirement for actual warfare will be fulfilled if the soldier is serving with



the armed forces 'in connection with military operations which are or have been taking place or are believed to be imminent'.

It is widely accepted that even if a country is not at war at a particular time, a soldier may be regarded as being in actual warfare.

Read:

- **In the Estate of Estate of Colman** [Colman [1958] 1 W.L.R. 457; 2 All E.R. 35

- **Re Jones (deceased)** [1981] 1 All ER 1

(b) Mariner being at sea

This includes all categories and members of the marine force. It includes all support staff on a particular expedition provided the nature of the service involves going to sea. See for example, In the **Goods of Hale (1916)** (female typist on an ocean liner) and in the **Estate of Knibbs [1962] 1 WLR 852** (barman on ocean liner).

3.2.1.1. Implications of the privileged status.

The key implication of a privileged will is that it is not subject to the requirements of the Succession Act. However, there are a number of significant implications,

- A privileged will is valid even if the formalities prescribed in Section 50 of the Succession Act are not followed. However, where the will is oral, it must be witnessed.
- An informal act or document by a privileged testator is capable of revoking a formal will executed at an earlier date by the deceased person. A case in point is In the **Estate of Gossage (1921) 194,CA** will, having received orders to proceed with his unit to South Africa. The will was handed and sealed in a sealed envelope to his fiancée, the residuary legatee. Later, having been informed about the fiancée's conduct, the testator wrote to her requesting that she hand over the will to his sister

(which she did). Later still he wrote an unattested letter to his sister asking her to burn the will. It was



held that this letter revoked the will since it contained a clear intention to revoke it.

3.2.2. Ordinary wills.

These are wills made by most ordinary people. In order for an ordinary will to be valid, the testator must possess the capacity to make such a will. This means:

- He or she must have reached the statutorily prescribed minimum age;
- He or she must be of sound disposing mind.

Apart from being rendered invalid on account of the testator's incapacity, the whole will or portion of it may be invalidated on the ground that it does not represent his or her intentions either:

- Because he or she did not know and approve of the contents; or
- Because he or she was induced to make the will through fraud, coercion or undue influence.

The will, will also be invalidated where it does not make provision for dependents, executors et cetera.

3.2.2.1. Capacity Age

Minors are deemed to lack the capacity to make a will and this lack of capacity is statutorily entrenched in Section 36(1) of the Succession Act.

Scholars have advanced two major reasons why a minor is denied testamentary capacity. This is so because;

- That although they may know exactly what the function of a will is and exactly what will they wish to make, they may nevertheless lack the discretion to make a responsible will.
- That they are at an age where they may be more easily subjected to undue influence by a relative or close friend than an adult might be.

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According to subsection 5 of Section 36 of the Act removes capacity from any person whose mind is in such a state whether arising from drunkenness, illness or any other cause that renders such a person not to know what he or she is doing.

Cockburn CJ in **Banks v Goodfellow (1870) LR 5 QB 549**, provides a guideline of what amounts to soundness of mind for the purposes of testamentary disposition he stated that:

- The testator must 'understand the nature and effect of the business in which he is engaged';
- The testator must be able to 'recollect the property he means to dispose of;
- The testator must be able to 'recollect the persons who are the objects of his bounty';
- The testator must not be suffering from any disease of the mind or insane delusion, which operates to distort his mind.

Note that this criteria set out by Cockburn is not mutually exclusive and has come to much criticism as many scholars have argued that due to advancements in medical diagnosis, there are questions as to whether his test is medically sound.

The courts do not insist that the Testator must exhibit the highest level of soundness of mind before he is competent to make a will. All that is required is that the testator must be able to discern and judge, as they apply to his situation, all those matters and circumstances which go into making a will.

To this end, subsection 4 of S.36 of the Act provides that a person who is ordinarily insane may make a will during an interval in which he or she is of sound mind. This is known as a lucid interval.

Therefore, in effect, the issue of whether the Testator is of sound disposing mind will be dealt with according to the facts and circumstances of each case.

The testator may have a sound disposing mind where his will is simple and

straightforward, but the position might well be different where the will is highly complex and technical. In **Re Park's Estate [1953] 2 All ER 1411**,



for instance, the testator, while a widower, made a will in favour of his closest relative. He then had a stroke, after which he was unable to look after himself and went through periods when his mind became confused. A short while later, he got married in the morning, made a new and complicated will in his new wife's favour in the afternoon and died that night. The court, while accepting that the testator might well have had the capacity to make a simple will, held that his capacity did not extend to the complicated will under consideration.

Note that soundness of mind is only required at the time a testator executes the will. Once this is done, the will is not invalidated by the fact that the testator's mental state deteriorates rapidly after the will has been executed.

*The rule in **Parker v Felgate (1883) 8 PD 171***

Where this rule applies, the requirement of a sound disposing mind is relaxed. The effect of this rule is that where the testator, while being of sound mind, instructs his solicitor to prepare his will, but is no longer of sound mind when executing it, this does not invalidate the will, provided that:

- it was duly prepared in accordance with the Testator's instructions;
- at the time of executing the will, the Testator was able to understand that he was executing a will prepared pursuant to his instructions, even if he no longer remembered what precise instructions he gave or understood the true import of the dispositions in his will.

Intention to make a will (animus testandi)

The testator may have the capacity to make a will but the will is nevertheless invalid because it fails to represent the testator's true intentions, because,

- there was no knowledge and approval on the testator's part; or
- because it was not the product of the testator's free will.

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Knowledge and approval of a testator.

This must be proved where the will was made by another party other than the testator themselves and signed by them later.

This is usually the case because there may be a possibility that the party who prepared the will may have deliberately varied or genuinely misunderstood the testator's wishes. Lord **Penzance in Cleare v Cleare (1869) LR 1 657** states that the onus of proving that the testator at the material time when the will was drafted had the knowledge and subsequently approved it lies on the party propounding the will.

The above case also lays down a rebuttable presumption to the effect that where evidence suggests that the testator was of sound mind then they are presumed to have known and approved the contents of their will.

This presumption will not apply where,

- the circumstances surrounding the execution of the will are such that they raise suspicion of the court.
- There is a mistake in the will or its execution; or
- The testator was dumb, blind or illiterate.

The most common situations that raise suspicion are for example where for example a will is prepared by a beneficiary to it. Such a beneficiary may not have prepared the will but having been active in some other respects concerning the will yet they are a substantial beneficiary to it.

For a recent example of such a situation read the case of **Hart v Dabbs (2000) All ER (D) 934**, In this case, the claimant was the son of the testator's friend and the principle beneficiary under the testator's disputed will. The will had been prepared by a friend of the claimant and the persons who had acted as witnesses had done so at the request of the claimant rather than the testator. The court held that the circumstances surrounding the preparation and execution of the will were sufficiently

suspicious to impose on the claimant the burden of proving that the testator knew and approved of the contents of the will. The court, however, held that



the claimant had discharged this burden by proving that the instructions for the will had emanated from the testator who was fully aware of its contents. It is also possible to impute knowledge and approval of the testator by showing Court that the will was read over to the testator but however, such a rule is not devoid of being abused.

In **Re Morris [1970] 1 All ER 1057**, Latey J expressed the view that evidence of 'reading over' should only be treated as weighty evidence to prove the testator's knowledge and approval such evidence not being conclusive in itself.

Mistake on the other hand concerns a number of scenarios;

- Mistake concerning the execution of the will

Where on the face of it, it appears that a will was executed by a testator who was mentally capable, the presumption that he knew and approved of its contents may be displaced where it emerges that in executing the will he was laboring under a mistake.

An example would be where say John prepares a will and instead of executing it, Jane executes it and in turn John executes a will prepared by Jane instead.

Such a situation occurred in the case of **In the Goods of Hunt (1875) LR 3) LR 3 P&D 250** where T1 drew up separate wills for herself and her sister T2. By mistake, T1 executed the will prepared for T2. The court refused probate of this will on the ground that T1's mistake meant that she could not properly be said to have known and approved of the contents of the will she had executed.

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- Mistakes concerning unintended inclusions and exclusions:

The testator may by mistake include unnecessary words into a will where if interpreted could lead to a will being legitimately challenged or may all the same omit some words whose effect may be the same.

The court in such cases has the power to order that the will be read as if the words as omitted or included be read into or out of such a will to create a purposeful interpretation of such a will.

A case in point was *Morrell Morrell* (1882) L.R. 7 P.D. 68) L.R. 7 P.D. 68 where the testator instructed his solicitor to draw up a will leaving 400 shares in a company to A. the will when drafted read that 'forty shares' had been left to

A. the will was admitted to probate without the 'forty', thus entitling A to take all the shares the testator had intended.

Please note that the powers of inclusion are not automatic. The Court is only willing to invoke such powers in case of clerical errors. The rule of inclusion is not reflected in our current succession laws.

- **Dumb, blind and illiterate testators.**

Section 36 (3) of the Act provides for the capacity of deaf, blind and dumb testators to make wills. The proviso is that they should be able to know what making a will means to them.

The making of the will by a dumb, blind and illiterate testator may be by another person. Where this is the case, the courts will not presume that the testator knew and approved of the contents of the will just because he was of sound mind and the will appears to have been duly executed. The person propounding the will must specifically prove such knowledge and approval.

Section 3 of the Illiterates Protection Act Cap 78 enjoins any person who writes a document for or at the request or on behalf of an illiterate person to write in the document his/her true and full address, and his or her so doing shall imply a statement that he or she was instructed to write the document



by the person for whom it purports to have been written and that it fully and correctly represents his or her instructions and was read over and explained to him or her. (On the strict application of this provision, read the Supreme Court decision of **Kasaala Growers Co-operative Society v Kakooza & Anor** civil application no. 19 of 2010no.)

The case of **In the Goods of Geale (1864) 3 Sw & Tr 431**, is an example of a situation where a testator was dumb, deaf and illiterate. However he was able to converse in an intelligible manner with friends and family and the evidence before court suggested that he was sane and intelligent. A will was prepared for him and he executed it and by evidence it was shown that the provisions of the will had been explained to him using appropriate mimes and signs. The court held his will as validly executed.

- **Absence of free will**

The absence of free will may also invalidate a will, where it is due to fraud, coercion and undue influence.

Section 47 of the Succession Act provides that a will obtained by fraud, coercion or undue influence is void.

Whereas it is incumbent on a person seeking to propound a will to satisfy the court that it was made with the testator's knowledge and approval, he is not at the same time required to prove the absence of fraud or undue influence.

Instead, the onus lies on any party who alleges fraud or undue influence to furnish the necessary proof. A plea of fraud or undue influence ought not to be made lightly, cogent evidence will be required by a court in order to sustain the plea.

4.4. Revocation, Alteration, Revival and Republication of Wills

According to Section 48 of the Succession Act, a will may be revoked or altered by its maker at any time when he or she is competent to dispose of his or her property by will.



In the old case of *Vimar v Wilde* (*Vynior's Case*), 77 Eng. Rep. 595 (KB), [1609] the court stated that a will is revocable by its very nature even if the testator declares it irrevocable.

The Succession Act in sections 56 to 60 provide for the Revocation, Alteration, Revival and Republication of Wills.

The Act provides for four methods of revocation of wills namely;

- Revocation by marriage
- Revocation by another will or codicil evidence before court suggested that he was sane and intelligent. A will was prepared for him and he executed it and by evidence it was shown that the provisions of the will had been explained to him using appropriate mimes and signs. The court held his will as validly executed.

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- Revocation by some writing declaring the intention to revoke the will and duly executed.



- Revocation by the testator or his agent in his presence and under his instructions either by burning, tearing or otherwise destroying the will with intent to revoke it.

Revocation by marriage occurs automatically meaning that it need not be shown that the testator intended by his marriage to revoke their will.

However, with the other forms of revocation, the testator's act must be accompanied by an intention to revoke (*animus revocandi*).

4.1.4.1. Revocation by marriage (Section 3 and 56 SA)

Under Section 3 of the Act, marriage does not per se make one acquire an interest in the part of the person he or she marries nor does it incapacitate any person from doing any act of his or her own party which he or she could have done if unmarried.

According to Section 56 of the Act, every will shall be revoked by the marriage of the maker, except a will made in exercise of a power of appointment, when the property over which the power of appointment is exercised would not, in default of the appointment, pass to his or her executor or administrator or to the person entitled in case of intestacy.

A will not only be revoked by a valid marriage but also a voidable marriage since a voidable marriage has capacity to either become valid or subsequently annulled. Of course the reverse is true.

In **Mette v Mette (1859) 1 Sw & Tr 416** where the testator married his wife's sister, the marriage though celebrated out of the English jurisdiction, was void for falling within prohibited degrees of affinity and therefore was held not to have revoked his earlier will.

Further read: **Rwabagango v Donato (1977) HCB 244** and Section 30 of the Act on the effect of separation.

4.2. Revocation by subsequent will or codicil

Section 57 provides for revocation by a subsequent will or codicil.



If the testator decides to revoke his will, in whole or in part, he may do so by executing a later will or codicil.

The English Court in **Re E (2000)**, Arden J reiterated the basic principles applicable to revocation of a will by subsequent will;

- whether a prior will or codicil has been revoked by a later will or codicil is a matter of construction; (read Section 61 of the Act)
- there must be an intention to revoke on the part of the testator in making the subsequent will or codicil;
- extrinsic evidence is admissible to establish this intention;
- where a testator has executed more than one will the court should as far as possible construe them so that both may stand;
- if the instruments are so inconsistent that they cannot stand together (and it is not known which was executed last), neither can be admitted to probate.

Successor to note when a will is being drafted, professionals tend to include the words, “This is my last will...” this does not necessarily imply that all earlier wills are revoked. Revocation will occur, only where a later will discloses an express intention to revoke an earlier will or where such an intention can be implied from the later will.

4.3. Revocation by some duly executed writing.

It is contemplated under **Section 57** of the Act that some other writing declaring an intention to revoke a will and duly executed can substantially revoke a will.

This mode of revocation was adopted from Lord Penzance’s words in **In the Goods of Durance (1872) 2 P & D 406** where he declared that if a man writes to another ‘Go and get my will and burn it’, he shows a strong intention to revoke the will; and it follows that if the letter was duly executed it will operate to revoke the will.

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Indeed, in **Re Sparklan's Estate (1938) 2 ALLER 345**, a letter signed by a testator and duly attested, addressed to a bank manager instructing him to destroy a will by the testator was held to have effectively revoked the will. The will was revoked as soon as the letter was duly executed.

4.4. Revocation by destruction

Here the distinct elements are;

- (a) The act of destruction.
- (b) An intention to revoke.

The act of destruction

Although s 57 mentions two specific modes of destruction (burning and tearing) the words 'otherwise destroying' signify that other similar acts will suffice (for example, dissolving it in acid or pinning it up on a wall and shooting it to bits).

Case law has shown over time that the act of destruction will consist of complete obliteration of a vital portion of the will such as the testator's signature.

In **Cheese v Lovejoy (1877) 2 Pd 251**, a will was cancelled by drawing lines in it with a pen in some parts of the will. At the back of the will, the testator wrote that all these are revoked; thereafter he threw it among a heap of waste paper in the corner of his living room. His house maid retrieved it and kept it and kept it until the testator's death 7 years later. The Court held that the will was not revoked since the testator had not done any destruction.

Destruction to be effective must be carried out by the testator himself or by another person in his presence and by his direction.

Read: **In the Goods of Dadds (1857) 164 ER 579** and **In the Estate**

of Kremer [1965] 110 SJ 18.



A partially destroyed will will have effect for the remaining portion as long as the remaining part contains the signature of the testator. This is what is known as partial revocation.

The direction of the testator in regards to destruction of a will is very important to fully facilitate the act of revocation. Where a will is destroyed by someone else in the presence of the testator but without their direction the will is not revoked.

A case on point was **Mills v Millward (1890) 15 PD 20**, where the testator's sister-in-law was so infuriated that the testator had left nothing for her and her husband in his will that she tore up the will in the testator's presence.

The will was held as not to have been revoked.

Intention to revoke

The testator must have intended to revoke their will when the act of destruction occurred. If for example the testator destroys their will under an assumption that they are destroying a different document, this will not revoke the will.

Similarly, where the will is destroyed by a testator that is of unsound mind or drunk, then that will is not destroyed.

Revocation by destruction raises two presumptions namely;

(a) Presumption where a will is lost

Where a testator's will or codicil, which was last known to be in his possession is missing at his death, a rebuttable presumption is raised that he had destroyed it with the intention of revoking it.

Where it is not possible to point the last whereabouts of a will to the testator,

then such a presumption will not be raised.



To rebut such a presumption, it could be proved on a balance of probabilities that the testator did not seek to revoke the will but that will was actually stolen, lost or misplaced.

(b) Presumption where will is found mutilated

Where a testator's will which was known to be in his possession is found at his or her death to be torn or mutilated and there is no explanation as to how it got into such a state, the testator according to case law will be presumed to have intended to revoke the will or the torn/mutilated part.

There are also instances where a revocation may be conditional. A revocation is conditional where it will not take effect unless the material condition is satisfied.

In **Campbell v French v Campbell (1797) 3 Ves. Jr. 321**, the testator's will contained legacies in favour of his relatives who lived in America. In a later codicil, the testator revoked the legacies on the ground that the legatees were all dead, but it later emerged that they were still alive at His death. It was held that revocation was conditional on the legatees having died and was therefore of no effect.

The opposite of conditional revocations is absolute revocation which can be done through any of the above methods.

The question of whether a revocation is either conditional or absolute is a question of fact. Declarations made by the testator are admissible in this regard.

4.5. Alteration of wills

This usually happens where the testator wishes to amend some particulars in the will.

The options open to such a testator are to:

- Execute a codicil in which they state out the desired amendments; or



- Embody the proposed amendments in the will itself by means of such interlineations, obliterations or other alterations as are considered appropriate.

Of major concern here is whether such alterations are proper under the law.

Where evidence is led to the fact that the testator altered his will before execution of a will intending that the alteration should form part of the will, the alteration is valid whether or not it is signed and attested to. The will will therefore be read in the light of these alterations.

4.5.1. Presumptions connected with the alteration of wills and the effect
Presumptions connected with the alteration of wills and the effect of Section 58 of the Succession Act.

Presumption as to when alteration were made

There is a rebuttable presumption that any alteration to a will was made after the will and any codicils to the will were executed.

The rebuttal of this presumption will bring S.58 into play that is, the alteration is deemed to be valid only if it has been duly signed and attested to.

Presumption arising from making alterations in pencil

It is presumed that alterations in pencil are more deliberative than 陶婉nal more so where the contents of the rest of the will are in ink.

Where an alteration is after a will has been already executed, Buckley J stated in **Re Hay [1904] 1 Ch. 317**], that such an execution is not effective unless the alteration is executed.



Due execution here means that it must be signed by the testator and at least two attesting witnesses in the manner of execution of any valid will. The witnesses need not be the same as those that signed the earlier will.

An improper execution of a later alteration will make such alteration of no effect.

Animus revocandi

The fact that certain words in a will have become so obliterated that a part of the will is no longer apparent will not revoke that part of the will if the obliteration was not the result of an intention to revoke this is known as animus revocandi.

4.6. Revival of wills

Section 60 of the Succession Act gives the rule relating to revival of unprivileged wills. The general rule is that no unprivileged will or codicil, nor any part thereof, which has been in any manner revoked, shall be revived otherwise than by the re-execution of the unprivileged will or codicil, or by a codicil executed in the manner hereinbefore required, and showing an intention to revive it.

Two modes of revival are provided for in this provision;

(a) By re-execution: As the term suggests, this entails the signing and witnessing of the previously revoked will in the manner prescribed by the Succession Act.

Where such re-execution occurs, this in itself is deemed to signify T's intention to revive the will and there is no need to satisfy the court of this fact.

(b) By a duly executed codicil: this shows an intention to revive the revoked will.

The testator must of course have the intention to revive their will.

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